

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: June 10, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER SETTING STATUS CONFERENCE

On June 10, 2026, Complainant filed a Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order and Appendix to Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order. On the same date, Respondents transmitted an email to this office requesting that a status conference be conducted regarding the depositions of Cool Living LLC's principals Anna Farkas and Tony Hopkins that are scheduled on June 11 and 12, 2026, pursuant to the notices of deposition dated June 5, 2026, that Complainant seeks to quash in the pending motion. Thereafter, OALJ staff confirmed that all parties are available for a status conference on Friday June 12, 2026, at 10 AM EDT. Given that the discovery deadline in this proceeding is June 13, 2026, and that an order was entered on June 8, 2026, granting the motion to withdraw by Complainant's counsel effective June 14, 2026, I find that expedited disposition of the pending motion is appropriate. Accordingly, Respondent is directed to file a response to the pending motion to quash with electronic service on all parties by **June 11, 2026, at 6 PM EDT**. A status conference will be held on **June 12, 2026, at 10:00 am EDT**, no depositions shall be conducted absent further order, and the parties shall follow all directions set forth in this order.

Accordingly, it is

ORDERED that the parties appear for a status conference on **Friday, June 12, 2026, at 10:00 AM EDT** to facilitate resolution of the pending motion and discovery dispute. The conference will be conducted via Teams and the parties' representatives will receive a Teams link; it further

ORDERED that Respondent shall file a written response to Complainant's Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order with electronic service on all parties by **June 11, 2026, at 6:00 PM EDT**; it is further

ORDERED that the parties be prepared at the status conference to discuss, *inter alia*, whether the notices of deposition at issue comply with all applicable law, regulations, and

procedural rules, whether good cause exists to extend the discovery deadline beyond the current deadline of June 13, 2026, and what additional discovery is contemplated by the parties; it is further

ORDERED that Respondent be prepared to discuss why the notices of deposition of Complainant's representatives were scheduled so late in the discovery period and why good cause exists to extend the discovery period to allow the depositions to proceed at a later date; it is further

ORDERED that no depositions shall occur absent further order.

MARY A. HERVEY - Digitally signed by MARY A.
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Date: 2026.06.10 15:56:52 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge